For these reasons we are convinced that the judgments below result in a curtailment of expression that cannot be dismissed as insignificant. If they can be justified at all, it must be in terms of some serious substantive evil which they are designed to avert. The substantive evil here sought to be averted has been variously described below.[15] It appears to be double: disrespect for the judiciary; and disorderly and unfair administration of justice. The assumption that respect for the judiciary can be won by shielding judges from published criticism wrongly appraises the character of American public opinion. For it is a prized American privilege to speak one's mind, although not always with perfect good taste,[16] on all public institutions. And an enforced silence, however limited,

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interest is strong and public opinion divided, cases commonly remain "pending" for several years. See *St. Joseph Stock Yards Co.* v. *United States*, 298 U. S. 38, 88–92; *McCart* v. *Indianapolis Water Co.*, 302 U. S. 419, 435.

[15] Cf.: ". . . said telegram . . . had an inherent tendency . . . *to embarrass and influence the actions and decisions of the judge* before whom said action was pending." *Bridges* v. *Superior Court, supra*, 14 Cal. 2d at p. 471; "The published statement was not only *a criticism of the decision of the court* in an action then pending before said court, but was *a threat* that if an attempt was made to enforce the decision, the ports of the entire Pacific Coast would be tied up." *Id.* 488; " . . . the test . . . is whether it had a reasonable tendency *to interfere with the orderly administration of justice* . . ." *Times-Mirror Co.* v. *Superior Court, supra*, 15 Cal. 2d at 103–104; ". . . the editorial [had a] . . . reasonable tendency . . . *to interfere with* the ordinary administration of justice." *Id.* 110. The italics are ours.

[16] Compare the following statements from letters of Thomas Jefferson as set out in Padover, Democracy, 150–151: "I deplore . . . the putrid state into which our newspapers have passed, and the malignity, the vulgarity, and mendacious spirit of those who write them. . . . These ordures are rapidly depraving the public taste.

"It is however an evil for which there is no remedy, our liberty depends on the freedom of the press, and that cannot be limited without being lost."